

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1535
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 12-116.13, to read:

4 12-116.13. ~~Assessment; anti-human trafficking grant fund~~

5 A. IN ADDITION TO ANY OTHER ASSESSMENT, IF A PERSON IS CONVICTED OF
6 A VIOLATION OF SECTION 13-3214, SUBSECTION A, PARAGRAPH 2, THE COURT SHALL
7 ORDER THE PERSON TO PAY AN ASSESSMENT OF \$200. THE ASSESSMENT SHALL NOT
8 BE WAIVED AND IS NOT SUBJECT TO A SURCHARGE.

9 B. THE COURT SHALL TRANSMIT THE ASSESSMENTS COLLECTED PURSUANT TO
10 THIS SECTION TO THE COUNTY TREASURER.

11 C. THE COUNTY TREASURER SHALL TRANSMIT THE ASSESSMENTS TO THE STATE
12 TREASURER. THE STATE TREASURER SHALL DEPOSIT THE ASSESSMENTS IN THE
13 ANTI-HUMAN TRAFFICKING GRANT FUND ESTABLISHED BY SECTION 41-1736.

14 Sec. 2. Section 13-3214, Arizona Revised Statutes, is amended to
15 read:

16 13-3214. ~~Prostitution; classification~~

17 A. It is unlawful for a person to knowingly:

18 1. ~~[Engage in prostitution OR AGREE OR OFFER TO ENGAGE IN SEXUAL~~
19 ~~CONDUCT UNDER A FEE ARRANGEMENT WITH ANY PERSON FOR MONEY OR OTHER~~
20 ~~VALUABLE CONSIDERATION] [OFFER TO RECEIVE, AGREE TO RECEIVE OR RECEIVE A~~
21 ~~MONETARY FEE OR OTHER VALUABLE CONSIDERATION FOR ENGAGING IN SEXUAL~~
22 ~~CONDUCT WITH ANOTHER PERSON].~~

23 2. ~~[PAY FOR OR AGREE OR OFFER TO PAY FOR SEXUAL CONDUCT UNDER A FEE~~
24 ~~ARRANGEMENT WITH ANY PERSON FOR MONEY OR ANY OTHER VALUABLE CONSIDERATION]~~
25 ~~[OFFER TO PAY, AGREE TO PAY OR PAY A MONETARY FEE OR VALUABLE~~
26 ~~CONSIDERATION FOR ENGAGING IN SEXUAL CONDUCT WITH ANOTHER PERSON].~~

27 B. This section does not prohibit cities or towns from enacting and
28 enforcing ordinances to suppress and prohibit prostitution that provide a

1 punishment for misdemeanor violations that is at least as stringent as
2 provided in this section.

3 C. For the purposes of sentencing under this section, a previous
4 violation of any city or town ordinance that prohibits prostitution and
5 that has the same or substantially similar elements as this section shall
6 be deemed to be a previous violation of this section.

7 D. It is an affirmative defense to a prosecution under this section
8 that the defendant committed the acts constituting ~~[prostitution]~~ [A
9 VIOLATION OF SUBSECTION A, PARAGRAPH 1 OF THIS SECTION] as a direct result
10 of being a victim of sex trafficking.

11 E. A person who violates SUBSECTION A, PARAGRAPH 1 OF this section
12 is guilty of a class 1 misdemeanor, except that:

13 1. A person who is convicted of a first violation of this section
14 shall be sentenced to serve not less than fifteen consecutive days in jail
15 and is not eligible for probation or suspension of execution of sentence
16 until the entire sentence is served.

17 2. A person who is convicted of a second violation of this section
18 shall be sentenced to serve not less than thirty consecutive days in jail
19 and is not eligible for probation or suspension of execution of sentence
20 until the entire sentence is served.

21 3. A person who is convicted of a third violation of this section
22 shall be sentenced to serve not less than sixty consecutive days in jail,
23 is not eligible for probation or suspension of execution of sentence until
24 the entire sentence is served and shall complete an appropriate ~~court~~
25 ~~ordered~~ COURT-ORDERED education or treatment program.

26 4. A person who has previously been convicted of three or more
27 violations of this section and who commits a subsequent violation of this
28 section is guilty of a class 5 felony, shall be sentenced to serve not
29 less than one hundred eighty consecutive days in jail and is not eligible
30 for probation or suspension of execution of sentence until the entire
31 sentence is served. This paragraph does not prohibit a person from being
32 sentenced to serve a period of incarceration in the state department of
33 corrections.

34 F. A PERSON WHO VIOLATES SUBSECTION A, PARAGRAPH 2 OF THIS SECTION
35 IS GUILTY OF A CLASS 6 FELONY, EXCEPT THAT:

36 1. A PERSON WHO IS CONVICTED OF A FIRST VIOLATION OF THIS SECTION
37 SHALL BE SENTENCED TO SERVE NOT LESS THAN FIFTEEN CONSECUTIVE DAYS IN JAIL
38 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
39 UNTIL THE ENTIRE SENTENCE IS SERVED.

40 2. A PERSON WHO IS CONVICTED OF A SECOND VIOLATION OF THIS SECTION
41 SHALL BE SENTENCED TO SERVE NOT LESS THAN THIRTY CONSECUTIVE DAYS IN JAIL
42 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
43 UNTIL THE ENTIRE SENTENCE IS SERVED.

44 3. A PERSON WHO IS CONVICTED OF A THIRD VIOLATION OF THIS SECTION
45 SHALL BE SENTENCED TO SERVE NOT LESS THAN SIXTY CONSECUTIVE DAYS IN JAIL,
46 IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL

1 THE ENTIRE SENTENCE IS SERVED AND SHALL COMPLETE AN APPROPRIATE
2 COURT-ORDERED EDUCATION OR TREATMENT PROGRAM.

3 4. A PERSON WHO HAS PREVIOUSLY BEEN CONVICTED OF THREE OR MORE
4 VIOLATIONS OF THIS SECTION AND WHO COMMITS A SUBSEQUENT VIOLATION OF THIS
5 SECTION IS GUILTY OF A CLASS 4 FELONY, SHALL BE SENTENCED TO SERVE NOT
6 LESS THAN ONE HUNDRED EIGHTY CONSECUTIVE DAYS IN JAIL AND IS NOT ELIGIBLE
7 FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL THE ENTIRE
8 SENTENCE IS SERVED. THIS PARAGRAPH DOES NOT PROHIBIT A PERSON FROM BEING
9 SENTENCED TO SERVE A PERIOD OF INCARCERATION IN THE STATE DEPARTMENT OF
10 CORRECTIONS.

11 Sec. 3. Section 41-1736, Arizona Revised Statutes, is amended to
12 read:

13 41-1736. Anti-human trafficking grant fund

14 [A.] The anti-human trafficking grant fund is established
15 consisting of monies COLLECTED PURSUANT TO SECTION 12-116.13 AND MONIES
16 appropriated by the legislature. Monies in the fund are continuously
17 appropriated. The department shall administer the fund and distribute
18 monies from the fund to programs to reduce human trafficking in this
19 state. To be eligible for grant monies, an anti-human trafficking program
20 shall do ~~either~~ ONE of the following:

21 1. Work to reduce human trafficking by providing assistance and
22 analytical services to law enforcement agencies.

23 2. Provide services to victims OF HUMAN TRAFFICKING. ~~and~~

24 3. PROVIDE training to law enforcement agencies, prosecutorial
25 agencies and the public on preventing and identifying human trafficking.

26 [B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, MONIES COLLECTED
27 PURSUANT TO SECTION 12-116.13 FROM A PERSON WHO IS CONVICTED OF A
28 VIOLATION OF SECTION 13-3214, SUBSECTION A, PARAGRAPH 2 SHALL BE USED
29 EXCLUSIVELY TO PROVIDE SERVICES TO VICTIMS OF SEX TRAFFICKING.]

30 Enroll and engross to conform

31 Amend title to conform

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